

Matter No.: SMART ODR Reference No. CDSL-DP-2023-12-660304

Mr. Anuj Jain

Category of Complainant: Investor

...**Complainant**

Versus

M/s Angel One Limited

Category of Respondent: Depository Participant ("DP")

...**Respondent**

CONCILIATOR: Mr. Vithal Dahake

Conciliation Report

Presolv360 is an independent institution facilitating and administering electronic Alternative Dispute Resolution via its online platform, Presolv360, also referred to as Online Dispute Resolution ("**ODR**") Institution, having its registered office at 3rd Floor, Churchgate House, 32 Veer Nariman Road, Fort, Mumbai - 400001.

Presolv360 has been empanelled by Central Depository Services Limited in accordance with the SEBI Master Circular No. SEBI/HO/OIAE/OIAE_IAD-1/P/CIR/2023/145 dated August 11, 2023 ("**SEBI Circular**") as may be amended/modified from time to time, for undertaking time-bound online Conciliation and online Arbitration.

The above-mentioned matter was referred to Presolv360 via SMARTODR.IN ("**ODR Portal**"), a common Portal established by the Market Infrastructure Institutions ("**MI**") in accordance with the SEBI Circular, for harnessing online Conciliation and online Arbitration for resolution of disputes arising in the Indian Securities Market. Further, the parties have accepted the terms and conditions of ODR Portal.

The undersigned has been appointed as a Conciliator by Presolv360 on 24-01-2024 in the present matter.

During the proceedings, attempts were made for resolving the matter through Conciliation in accordance with the SEBI Circular.

In the matter no. **S039775** (Presolv360 Case ID) raised by the Complainant against the Market Participant, meeting was held on date 19-02-2024 through Presolv360 via video conferencing.

ISSUES RAISED BY THE PARTIES

Issues raised by the Complainant:

The Complainant stated that:

1. The Complainant submits that his bank details have been changed by the Respondent without his authorization / instructions.
2. The Complainant wanted his SBI bank account to be mapped to the account. The Respondent on its own changed it to the Complainant's ICICI Bank account.
3. There has not been clear communication from the Respondent about it and Respondent is also not clear about what it has done and why it has been done.
4. The Complainant apprehends that if the Respondent is permitted to link or delink a particular bank account to his trading account, it can have very disastrous consequences to his financials. The Respondent has denied making any such changes in the bank account linking.
5. Although the Respondent denies it, the Respondent in its email dated 18-12-2023 has mentioned that change of bank account cannot be done by the Complainant and Complainant should send all requisite papers to the Respondent's Hyderabad office, which deals with the issue.
6. The Complainant has sought suitable confirmation and wants assurance that the Respondent will be mapping only the bank accounts as instructed by him.

Response of the Respondent to the issues raised by the Complainant:

The Respondent has submitted that:

7. The Respondent has submitted chronological details regarding mapping of the bank account by the Complainant itself as follows:
 - 5-12-2023: SBI Savings Account mapped, by the Complainant.
 - 6-12-2023: The Complainant changed it to his ICICI Bank account.
 - 9-12-2023: The Complainant requested the Respondent to delete ICICI Bank account details.
 - 01-01-2023. Client informed some ICICI Bank account details.
 - 22-01-2023: The Complainant updated his SBI bank account details.
 - The Respondent has submitted the log in details of the Complainant.
8. At the meeting, the Respondent conveyed its regret over the mis-communication caused due to the email dated 18-01-2023. The said email was with respect to the issue of bank account as well as updating of nomination. While the former can be done by Complainant online, the later is done only by the Respondent in physical mode.
9. The Respondent has assured complete cooperation to the client and assured that the Respondent cannot make any changes in bank account details or mapping without Complainant's authorization. It was reiterated that Complainant can change the bank details online.

Observation of Conciliator:

It has been observed that:

10. Respondent's email dated 18-12-2023 at 18.51 pm sent by one Ms. Rupali Avaduth informs the Complainant that he should send the nomination and modification hard copy to its Hyderabad office.
11. This naturally created confusion in the mind of the Complainant who was not sure which account is getting mapped and whether it is as per his choice or the Respondent is doing it on its own volition.
12. This was more of an avoidable mis-communication, which was resolved during the conciliation session.
13. The Complainant had earlier raised grievance about the brokerage being charged to him not being the same as mentioned on the site, at the NSE portal.
14. This was done as the Complainant found that the brokerage mentioned on the site and one selected by him are different. The Respondent submitted that they have already informed the Complainant that the brokerage as selected by him is applicable. Further as requested by the Complainant, revised welcome kit showing the applicable brokerage has been sent to the Complainant and the said issue has been resolved.
15. The Complainant was happy about the re-confirmation and agreed that even this issue stands mutually resolved. The Complainant has conveyed its intention to start trading in the account.

Order:

The apprehensions of the Complainant have been duly responded to and taken care of by the Respondent. The Complainant has no further grievance and is satisfied about the outcome.

Whether Conciliation was successful or unsuccessful: Successful.

Agreed Settlement Value / terms. Not applicable

Admissible Claim Value/ Directions by Conciliator: NIL



Vithal Dahake

Dated: 22-02-2024.